

JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION

OVERSEAS CONTRACTING ACTIVITIES - PR15239618

1. I recommend that Embassy Budapest use REALISCON Kft. other than full and open competition for the A&E design support services works of the construction activities in connection with the Chancery Workshops Integration Project. The estimated cost of the services is – \$74,981 (VAT included)
2. Nature and/or description of the action being approved.

Realiscon Kft. is A&E firm who prepared the design of the Chancery Workshops Integration project in 4 phases. The design was permitted by OBO, and the tender for the construction works of Phase 1 & Phase 2 successfully closed in 2024. The actual physical construction works as part of contract 19GE5024C0080 with PROVIM are scheduled to start in the spring of 2025. The construction works will be affecting both the North and South Chancery buildings on multiple levels and locations. The greatest challenge identified is the construction of the steel structure & Forced Entry ballistic resistance structures in the South Chancery attic floor and the extensive demolition in the North Chancery basement. The project will require A&E designers support FAC during the works by parties who have experience with Embassy/OBO projects and are able to provide design amendments if any modification would be required due to unexpected on-site conditions. Realiscon Kft. already has an extensive knowledge of the project and the site conditions allowing them to execute the tasks required with less risk and more efficiency than any another company.

3. An identification of the statutory authority permitting other than full and open competition:

FAR 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements.

(Citation: 41 U.S. Code § 3304 - Use of noncompetitive procedures)

Elaboration:

- a. It is recommended to purchase from the same contractor, who developed the original design.*
 - b. The recommended vendor, Realiscon Kft. is familiar with the site conditions, project requirements, has the necessary manpower on board for the works to be executed soonest, benefiting the government.*
4. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

See section 3.

5. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Previous orders to this company for similar works show that their prices are reasonable.

6. A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.

Survey was not conducted; see sections 3-5. The requester's estimation was in par with the quotation.

7. Any other facts supporting the use of other than full and open competition.

None

8. A listing of sources, if any, that expressed, in writing, an interest in the acquisition.

None

9. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

None

CERTIFICATION AND APPROVAL

I certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

3/31/2025
Date



Krisztian B. Kovacs, Engineer, Facilities

I approve other than full and open competition for this order.

3/31/2025
Date

Eric C Moore, Contracting Officer